

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call (657) 622-5908.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

June 26, 2026

#	Case Name	
2	Zardouz vs. Medhat F. Mikhael, M.D., Inc.	<u>Motion to Be Relieved as Counsel</u> The court GRANTS attorney CRAIG S. ROBSON's (of CORFIELD FELD LLP) unopposed Motion to Be Relieved as Counsel for Defendant MEDHAT F. MIKHAEL, M.D., INC dba PAIN MEDICINE ASSOCIATES. The court previously denied a similar motion because of procedural defects. (See 4/17/26 Minute Order.) The court finds moving attorney now meets the requirements set forth in Rule 3.1362 of the California Rules of Court. The order shall not become effective until the filing of a proof of service showing service of the order on MEDHAT F. MIKHAEL, M.D., INC dba PAIN MEDICINE ASSOCIATES. The court notes that moving attorney states that counsel does not have an attorney-client relationship with the defendant MEDHAT F. MIHAEL, M.D., INC dba PAIN MEDICINE ASSOCIATES, as currently constituted.

		According to moving counsel, the defendant is no longer owned and controlled by Dr. Mikhael (moving counsel's client). Moving attorney SHALL give notice and file a proof of service within 14 days, including a courtesy notice to Pain Medicine's apparent principal address in Fountain Valley, CA (per the Statement of Information filed with the State of California (Supporting Decl., filed 4/27/26, Exh. A) and to Pain Medicine's counsel of record in Case No. 30-2026-01550474 (Suppl. Decl. of Craig S. Robson, filed 6/18/26, ¶ 6).
3	Capital One, N.A. vs. McKinley	<u>Application to Appear Pro Hac Vice</u> The court GRANTS Attorney DAVID OTTO's unopposed Application to Appear as Counsel Pro Hac Vice for Defendants SERENITY CARE HEALTH and SERENITY HEALTH WE CORPORATION. The court finds that the requirements for pro hac vice admission have been met here. (See Cal. Rules of Court, rule 9.40.) Moving Attorney to give notice.
4	De Yoo vs. Serenity Care Health	<u>Motion to Appear Pro Hac Vice</u> OFF-CALENDAR. (See 6/25/26 Minute Order [hearing vacated after notice of withdrawal filed].)
5	Yum vs. U.S. Bancorp	<u>Motion to Appear Pro Hac Vice</u> The court GRANTS Attorney LANCE P. FELICIEN's unopposed Application to Appear as Counsel Pro Hac Vice for Defendant SOFI LENDING CORP.

		The court finds that the requirements for pro hac vice admission have been met here. (See Cal. Rules of Court, rule 9.40.) Moving Attorney to give notice.
6	Malki vs. Karanouh	<u>Motion for Attorney's Fees</u> The court GRANTS Defendant ABDULMAJID KARANOUH's motion for attorneys' fees pursuant to Code of Civil Procedure section 425.16 (re anti-SLAPP). Defendant is awarded attorneys' fees in the total amount of \$12,112.50. Defendant prevailed on an anti-SLAPP motion and Section 425.16(c) therefore authorizes attorneys' fees here. Plaintiff does not apparently dispute that the Defendant is entitled to attorneys' fees. Rather, Plaintiff disputes the amount requested. <u>Lodestar Calculation</u> The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; see also <i>K.I. v. Wagner</i> (2014) 225 Cal.App.4th 1412, 1425.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (<i>PLCM Group v. Drexler</i> (2000) 22 Cal. 4th 1084,1095.) "Under this method, the court 'begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" [Citation.] The lodestar 'should ordinarily include compensation for all the hours reasonably spent' on the case [citation], but the court must 'carefully review attorney documentation of

hours expended; “padding” in the form of inefficient or duplicative efforts is not subject to compensation.’ [Citation.] The lodestar may then be adjusted ‘to fix a fee at the fair market value for the particular action.’ ” (Komarova v. National Credit Acceptance, Inc. (2009) 175 Cal.App.4th 324, 348.)

Hourly Rates

When determining a reasonable attorneys’ fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998).

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.).

Here, the court finds that Defendant’s counsel’s hourly rate of \$425 is reasonable. (Moher Decl., ¶ 2.)

Time Spent

Defendant seeks \$11,857.50 in his motion. Mr. Moher declares that 27.90 hours were expended in these proceedings, not including the approximately 2.5 hours of work on reviewing documents and the settlement discussions that he voluntarily waived. (Moher Decl., ¶ 5 and ¶ 6, Exh. B [billings].) In his Reply Brief, Defendant seeks an additional \$935, attaching a declaration wherein Mr. Moher declares that he spent an additional 2.2 hours in reviewing the Opposition and preparing a Reply. The total amount sought by Defendant is therefore \$12,792.50.

In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Id.*) Additionally, moving party’s counsel’s verified time records

should be “entitled to credence in the absence of a clear indication the records are erroneous.” (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.) However, the court “may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

Plaintiff argues that the following entries were disproportionate to the scope of issues presented:

5.5 hours for initial case assessment and pre-motion work
6.5 hours opposing Plaintiff’s motion for limited discovery;
and
6.4 hours preparing the reply brief for the anti-SLAPP motion and related declaration work.

The court however does not find that this time is unreasonable or disproportionate.

Next, Plaintiff disputes the attorney client communications and case coordination reflected throughout the billing.

There are multiple billable entries for “emails w/ client” that do not provide further detail (in contrast to other, more descriptive entries of his communication with the client). Counsel also did not state in his declaration whether these emails were connected to the anti-SLAPP motion. These entries include the following:

11/25/25 entry for “emails w/ client (6 emails)”, .2, \$85.00
11/28/25 entry for “emails w/ client”, .1, \$42.50
12/16/25 entry for “emails w/ client”, .3, \$127.50
1/26/26 entry for “emails w/ client”, .4, \$170.00
2/24/26 entry for “emails w/ client”, .2, \$85
3/6/26 entry for “text messages w/ client”, .4, \$170.00

The court deducts the amount from these entries, for a total deduction of \$680.

Plaintiff also argues that time spent educating counsel regarding collateral family law issues and coordinating with third parties should not be allowable. However, Plaintiff did not set forth any specific entry, and a general review of

the billable entries only shows communications with family law attorneys and review of documents, which do not appear to be irrelevant. As Defendant notes in his reply, Defendant's review of the underlying family law proceeding and communication with family law attorneys is relevant as the premise of the Anti-SLAPP motion rested on the position that the Complaint's allegations derived from protected activity.

Finally, Plaintiff argues that because the anti-SLAPP ruling is on appeal, "the existence of the appeal counsels in favor of a conservative and carefully limited award." (Opp'n Br., at p. 3, line 8). Plaintiff cites to no authority in support of this argument. And as Plaintiff acknowledges, "the Court retains jurisdiction to consider attorney's fees as a collateral matter." (Opp'n Br. at p. 3, line 8. See also, *Bankes v. Lucas* (1992) 9 Cal.App.4th 365, 369 ["an award of attorney fees as costs is a collateral matter which is embraced in the action but is not affected by the order from which an appeal is taken. ... Consequently, filing of a notice of appeal does not stay any proceedings to determine the matter of costs and does not prevent the trial court from determining a proper award of attorney fees claimed as costs"].)

Defendant's other entries, including the 2.2 hours for the review of Opposition papers and the preparation of the Reply papers are reasonable.

Accordingly, the total fee award, minus the \$680 deduction, is \$12,112.50.

Defendant to give notice.

Upcoming 8/3/26 OSC re Dismissal

On 4/3/26, after the court granted Defendant's anti-SLAPP motion (on 3/20/26) but before Plaintiff filed a Notice of Appeal (on 4/6/26), this court set an Order to Show Cause re Dismissal pursuant to Section 581(f)(3) of the Code of Civil Procedure, for hearing on 8/3/26.

		In light of the Appeal, the court DISCHARGES the Order to Show Cause set for 8/3/26, for possible resetting after the conclusion of the appeal. Defendant to give notice.
7	California Affordable Housing Association vs. Volk Investments, LLC	<u>Motion for Leave to File Cross-Complaint</u> The court DENIES Defendant VOLK INVESTMENTS, LLC's Motion for Leave to File Cross-Complaint. The proposed Cross-Complaint seeks indemnity claims against an individual who is not currently a party to this action, ALEX AKSELROD. Section 428.50 of the Code of Civil Procedure authorizes the filing of a cross-complaint against a non-party "at any time <u>before the court has set a date for trial.</u>" (Code Civ. Proc., § 428.50(b), emphasis supplied.) Here, as explained below, trial was set long ago and Defendant's explanation is lacking for Defendant's extensive delay in seeking leave now to file a cross-complaint. This action was filed on 10/11/23 (i.e., years ago) and trial is currently set for 8/3/26 (i.e., about a month away). The action has been at-issue for years and trial has been continued numerous times at Defendant's requests. Defendant filed an answer on 7/26/24. On 10/28/24, the court set the original trial for 12/15/25. After Defendant failed to comply with discovery obligations and pursuant to Plaintiff's motions for sanctions, the court issued evidentiary sanctions on 5/2/25 against Defendant (while denying Plaintiff's request for evidentiary sanctions). The court also heard, but denied, Plaintiff's motion for summary judgment/adjudication of issues on 10/10/25. Thereafter, on 11/25/25, pursuant to a stipulation of the parties and ex parte application <i>filed by Defendant</i>, the court granted Plaintiff leave to file a Third Amended Complaint by 12/1/25, ordered Defendant to file an Answer to the new pleading within 30 days, continued the trial date from 12/15/25 to 3/9/26, and extended trial-

		related dates. (11/25/25 Minute Order.) Defendant now contends that its stipulation was based on an undisclosed stipulation to the court that Defendant would be granted leave to file a cross-complaint. Such contradicts the ex parte application. (See Def’s Ex Parte Appl., filed 11/24/25, p. 2, lines 1-12 [stating what the stipulation and requests were based upon].) Notably, the court continued the trial date as requested by Defendant – i.e., “to a date after March 1, 2026”. (Id., at p. 3, lines 6-9 and Exh. A [Stipulation].) Thereafter, and after Plaintiff filed trial documents, Defendant filed another ex parte requesting a trial continuance. Defendant’s ex parte was not based on any contemplated cross-complaint. Rather, it was based on defense counsel being engaged in another action in another county that is facing a 5 year statute. In response, the court continued the trial from 3/9/26 to 8/3/26. (See 3/2/26 Minute Order.) Only thereafter, on 4/9/26, did Defendant file the instant motion for leave to file a cross-complaint. The court further notes that despite the court ordering Defendant to file an answer within 30 days of 11/25/25, Defendant did not file the answer until months later, on 2/17/26, and only after Plaintiff gave notice that it would seek entry of default due to Defendant’s failure to timely file an answer. It does not appear that Defendant has acted in good faith. The motion is DENIED. The 1-day bench trial remains set for 8/3/26. Plaintiff to give notice.
8	Preciado vs. Acosta	<u>Motion to Set Aside Dismissal</u> The court GRANTS Plaintiffs CHRISTIAN PRECIADO, ROXY MENDEZ, and ROSALY VAZQUEZ’s (through her Guardian

ad litem ROXY MENDEZ) motion to set aside the dismissal issued on 2/9/26.

Code of Civil Procedure section 473(b) provides, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” An application under Section 473(b) must be accompanied by a copy of the answer or other pleading proposed to be filed therein; and be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473(b).)

The section continues in relevant part:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any . . . resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. . . .

Where an “attorney affidavit of fault” is filed, there is no requirement that the attorney’s mistake, inadvertence, etc. be excusable. Relief must be granted even where the default resulted from inexcusable neglect by the party’s attorney. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 897.) The motion is timely if filed within six months of the entry of default judgment or dismissal. (See *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147.)

“Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Here, Plaintiff's application was filed within a reasonable time of the dismissal and appears to be based on counsel's mistake, inadvertence, surprise, or excusable neglect. Attorney Hatch declares that the hearing date had been removed from his calendar. (See Hatch Decl. ¶ 13 [declaring the date "had . . . been removed from the counsel's calendar"].)

In addition, the court notes the declaration of Attorney Hatch filed in support of the motion responds to this court's Order to Show Cause as well, setting forth the steps counsel has taken to locate and serve Defendant Acosta with process.

For these reasons, the court **GRANTS** the motion to set aside the dismissal and re-sets the Case Management Conference and Order to Show Cause.

A Case Management Conference is hereby set for October 26, 2026, at 10:00 am in Dept. W8. All appearing parties SHALL file and serve a new and timely case management statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Failure to do so may result in the imposition of monetary sanctions of \$500.00 against the offending party and/or its attorney of record.

The Order to Show Cause (OSC) re sanctions, including Dismissal for Plaintiffs' Failure to Serve and Prosecute and Monetary/Evidentiary Sanctions for Failing to File a Timely Case Management Statement is also hereby reset for October 26, 2026, at 10:00 AM in Dept. W8.

Further, the court exercises its discretion and ORDERS Attorney JOHN C. HATCH to pay \$500 to the court (payable to the "Clerk of the Court") within 30 days. Section 473(c)(1)(A) of the Code of Civil Procedure authorizes the court "[w]henever the court grants relief from a ... dismissal based on any of the provisions of this section, the court may ... "[i]mpose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party" or "[g]rant other relief as appropriate."

		Plaintiff to give notice to any Defendant(s).
9	Zhang vs. Martinez	<u>Motion for Sanctions (Code Civ. Proc., § 128.7)</u> <u>Motion for Relief from Jury Waiver</u> <u>1. Motion for Sanctions</u> The court DENIES the motion for sanctions filed by Defendants MICHAEL MARTINEZ and ALCHEMY MEN'S GROOMING. Defendants move for sanctions under Section 128.7 of the Code of Civil Procedure on the grounds that Plaintiff filed a second motion for summary adjudication that Defendants contend is duplicative, successive, and was already adjudicated by the court. Defendants argue that sanctions are warranted because California courts do not permit repetitive summary judgment motions absent newly discovered evidence, changed circumstances, or other valid justification, citing <i>Bagley v. TRW, Inc.</i> (1999) 73 Cal.App.4th 1092 and <i>Francois v. Goel</i> (2005) 35 Cal.4th 1094. Section 128.7 authorizes a court to impose sanctions on a party or attorney that presents a pleading, petition, motion, or other similar papers in the following circumstances: 1) the document is presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. 2) the claims, defenses, and other legal contentions therein are not warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. 3) the allegations and other factual contentions have no evidentiary support; 4) the denials of factual contentions are not warranted on the evidence.

Section 128.7 permits the court to impose monetary sanctions on an attorney or an unrepresented party that violates any one of these requirements. (*Eichenbaum v. Alon* (2003) 106 Cal.App.4th 967, 976.) In addition, Section 128.7 does not require a finding of subjective bad faith; instead it requires only that the court find that the conduct be objectively unreasonable. (*In re Marriage of Reese & Guy* (1999) 73 Cal.App.4th 1214, 1221.)

Under Section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189-190.) A claim is factually frivolous if it is “not well grounded in fact” and is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*Ibid.*) In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (*Ibid.*) A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.” (*Ibid.*) However, “section 128.7 sanctions should be ‘made with restraint’ [Citation], and are not mandatory even if a claim is frivolous.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428. at 448.)

“When a motion has partial merit, it is not ‘totally and completely’ without merit.” (*Gerbosi v. Gaims, Weil, W. & Epstein, LLP* (2011) 193 Cal.App.4th 435, 450.)

Here, the court already decided whether or not Plaintiff’s second motion was barred. In the court’s 4/24/26 minute order, the court stated:

Defendants argue that Plaintiff’s second motion for summary adjudication should be barred as it raises an issue from Plaintiff’s first motion. In support of the argument, Defendants cite to *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, *Francois v. Goel* (2005) 35 Cal.4th 1094 and Section 437c(f)(2) of the Code of Civil Procedure.

Both *Bagley* and *Francois* are based on Section 437c(f)(2). *Bagely* held that a second motion for summary judgment was barred by Section 437c(f)(2). (See *Bagely*, 73 Cal.App.4th at 1093 [“we conclude that the second motion was barred by subdivision (f)(2) of section 437c of the code of Civil Procedure”], see also, fn 3 [“Quite clearly, this case must be decided by the specific requirements of the summary judgment statute, not the general provisions of the reconsideration statute.”].) While *Francois* discussed at length both Section 437c(f)(2) and Section 1008 (re motions for reconsideration) of the Code of Civil Procedure, the holding was based on Section 437c(f)(2) and not the general provision of Section 1008. summary judgment that did not satisfy the requirements of section 437c, subdivision (f)(2), which they were not permitted to do.”]. See also, *Schachter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 738 [because a specific provision relating to a particular subject will govern over a general provision, “section 437c(f)(2), not the provisions of section 1008, governs where the motion is for summary judgment”].)

As such, the court analyzes Section 437c(f)(2). Section 437c(f)(2) of the Code of Civil Procedure states, in relevant part: “A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.” (Code Civ. Proc., § 437c(f)(2).) Elsewhere, section 437c reiterates: “A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication.” (Code Civ. Proc., § 437c(a)(4).)

As the court previously noted, while section 437c prohibits a successive motion for summary judgment, the statute does not bar a second, motion for summary adjudication. (See 4/24/26 Minute Order [ROA 212].) As such, Plaintiff’s instant motion for summary adjudication is not barred by Section 437c(f)(2).

Merely filing a second motion for summary adjudication alone, in and of itself, is not legally meritless. The court denied the second motion for summary adjudication on the grounds that Plaintiff's motion did not seek to completely dispose of a cause of action. This issue, however, is not raised in Defendant's current motion for sanctions.

Analyzing Defendants' motion for sanctions on the specific grounds that Defendants identify, the court does not find that merely filing a second motion for summary adjudication not based on "newly discovered evidence, changed circumstances, or other valid justification" is frivolous or meritless. Had Plaintiff raised a viable issue for summary adjudication, the rules allow Plaintiff to do so by a second motion for summary adjudication.

As such, sanctions under section 128.7 are not warranted based on the grounds that Defendants raise in their motion.

The motion is DENIED.

Defendants to give notice.

2. Motion for Relief from Jury Waiver

The court **DENIES** Plaintiff JIA XUN ZHANG's Motion for Relief from Jury Waiver.

As explained below, it appears that Plaintiff waived a jury trial but changed Plaintiff's mind over the last year, only after the court made rulings on dispositive motions.

Plaintiff specifically requested "a nonjury trial" in multiple Case Management Statements. (See Case Management Statements, filed on 3/4/25 and 4/14/25, ¶¶ 5 [Register of Action No. ("ROA") 20, ROA 34].) Notably, Plaintiff's Case Management Statements confirm that the parties addressed and discussed the issue of a jury trial before deciding to request a nonjury trial. (See Case Managements Conference Statements [ROA 20 and ROA

34, ¶ 19 [confirming that the parties “have met and conferred ... on all subjects required by rule 3.724 of the California Rules of Court”]. See also, Rule 3.724 of the California Rules of Court, which incorporates the requirements of Rule 3.727, specially requiring the parties to address “Whether a jury trial is demanded, and, if so, the identify of each party requesting a jury trial”. (Cal. Rules of Ct., rules 3.724 and 3.727(13).) Defendant likewise specifically requested a nonjury trial. (See Def’s Case Management Statement, filed on 3/17/25, ¶ 5 [ROA 28].)

On 3/24/25, based on the parties’ representations and request for a nonjury trial, the court set a 3-5 day nonjury trial for 9/28/26. (See 9/2/25 Minute Order [ROA 76].)

Despite such, Plaintiff filed the instant motion on 4/10/26 (over a year after the court trial was set).

Notably, the instant motion was also filed only *after* this court made rulings on numerous dispositive motions. (See 1/23/26 Minute Order [ruling denying Plaintiff’s motion for summary judgment] [ROA 114]; 4/3/26 Minute Order [issuing a tentative ruling granting Defendant’s motion for summary judgment on Plaintiff’s Complaint but ultimately denying the motion; also denying Plaintiff’s motion to strike Defendant’s cross-complaint][ROA 158]. See also, *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 780 [discussing the Court’s prior ruling in *Gonzales v. Nork* (1978) 20 Cal.3d 500 wherein the Court held that the trial court did not abuse its discretion in denying a motion for relief from jury waiver, after considered factors such as the following: “that despite earlier opportunities to seek such relief, the defendant sought relief only after he had begun to argue issues to the judge, sitting as trier of fact”].)

While Plaintiff now argues that the “failure to timely request a jury trial and post jury fees was inadvertent”, the record reflects otherwise. According to the supporting declaration, Plaintiff’s purported inadvertence was due to a “lack of familiarity with legal procedures as a self-represented litigant.” (Zhang Decl., ¶ 3.) Also notable, the court is required to treat self-represented litigants the same as any other party. (See, e.g., *Barton v. New United Motor Manufacturing, Inc.* (1996) 43 Cal.App.4th 1200,

		1210 [self-represented party “is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys”].) As such, a self-represented party is “held to the same restrictive procedural rules as an attorney”. (<i>Bistawros v. Greenberg</i> (1987) 189 Cal.App.3d 189, 193.) After considering numerous factors, including those noted in <i>TriCoast Builders, Inc. v. Fonnegra</i> (2024) 15 Cal.5th 766, the court finds that it would not be just to grant the motion. Defendants to give notice.
10	Carnations Home, Inc. vs. The Hills Senior Living	<u>Motion to Set Aside Default</u> <u>Status Conference re Default Judgment</u> <u>1. Motion to Set Aside Default</u> The court GRANTS Defendants CHERRY CERAME, CHRISTOPHER CERAME, and MTE27, INC.’s (the Moving Defendants) motion to set aside their defaults. RJN: The court GRANTS Moving Defendants’ requests for judicial notice concerning three court records. (Evid. Code, § 452(d).) Where defendants were not properly served with the Summons and Complaint, any defaults entered against them are void. (See, e.g., <i>First American Title Ins. Co. v. Banerjee</i> (2022) 87 Cal.App.5th 37, 42; <i>Hearn v. Howard</i> (2009) 177 Cal.App.4th 1193, 1200.) Moreover, where the default was void, the motion to vacate the default is not subject to the six-month limitation contained in section 473 of the Code of Civil Procedure. (<i>Braugh v. Dow</i> (2023) 93 Cal.App.5th 76, 86.) As explained below, Moving Defendants show they were not properly served with the Summons and Complaint, and Plaintiff does not show otherwise.

Plaintiffs apparently served all three Moving Defendants at 22800 Savi Ranch Parkway, Suite 200, Yorba Linda, CA 92887 (“Savi Ranch Address”). MTE27 was purportedly personally served through “Allen Medina – Authorized Agent for Service of Process,” while the Cherry Cerame and Christopher Cerame were purportedly served by substituted service, and through “Vanessa B., Office Manager.”

Plaintiffs’ own Complaint, as well as evidence presented by Moving Defendants, show that the Savi Ranch address was not MTE27’s principal address, nor was Allen Medina its authorized agent for service of process.

Instead, MTE27’s principal address, and its mailing address, is 31506 Kailua Drive, Winchester, CA 92596. MTE27’s agent for service of process is 1505 Corporation, California Registered Agent, Inc. (Cherry Cerame Decl., ¶ 4; Christopher Cerame Decl., ¶ 4; see also Compl., ¶¶ 22-24 [alleging that MTE’s principal place of business is the Kailua address].)

Moving Defendants also proffer evidence that neither “Vanessa B.” nor Allen Medina (a co-defendant) are present employees of MTE, nor were they employees at the time of the purported service of the Summons and Complaint. (Cherry Cerame Decl., ¶ 3; Christopher Cerame Decl., ¶ 3.)

Cherry Cerame and Christopher Cerame also declare that they were not served with the Summons and Complaint. (Cherry Cerame Decl., ¶ 6; Christopher Cerame Decl., ¶ 6.)

Apparently, during Plaintiffs’ first attempt to serve Cherry Cerame and Christopher Cerame, Allen Medina advised the process server that neither Cherry Cerame nor Christopher Cerame worked at the office. (RJN, Exhs. B and C.)

It appears Plaintiffs knew, or should have known, the Savi Ranch Address was not the correct address to serve any of the three Defendants.

And while Plaintiff presents evidence that Defendants had actual notice of the lawsuit (York Decl., Exh. A), knowledge

of a lawsuit is insufficient. The court does not acquire jurisdiction over a defendant simply because they had actual notice of the lawsuit. (See, e.g., *Sternbeck v. Buck* (1957) 148 Cal.App.2d 829, 838-839; *Braugh v. Dow* (2023) 93 Cal.App.5th 76, 88-89 [plaintiff's non-compliance with the service of process rules was an issue of fundamental jurisdiction, rather than a mere technicality, such that the judgment or order is void even in the face of actual notice].)

In sum, the motion is GRANTED. The entry of default against each of the Moving Defendants is VACATED. (See ROA 67 [default entered on 4/29/25 against Cherry Cerame]; ROA 70 [default entered 4/29/25 against Christopher Cerame]; and ROA 86 [default entered on 4/29/25 against MTE27, Inc.]

In light of the ruling, the court again sets a Case Management Conference (CMC), set for October 26, 2026 at 10:00 am in Dept. W8. All appearing parties SHALL file and serve a new timely case management conference statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Failure to do so may result in the imposition of monetary sanctions of \$500.00 against the offending party and/or its attorney of record.

The court also sets an Order to Show Cause (OSC) re Sanctions, including Dismissal for Plaintiff's Failure to Serve and Prosecute. Plaintiffs are ordered to appear and ordered to file a Proof of Service re Summons and Complaint on all unserved defendant(s) at least 10 court days before the hearing. If Plaintiffs fail to do so, the court will dismiss the action against any unserved defendant at the hearing unless Plaintiffs appear and show good cause otherwise. (See Cal. Rules of Court, rule 3.110(f); Orange County Superior Court Local Rule 381.)

The OSC re Sanctions/Dismissal will be the same date, time and place as the new CMC.

Plaintiffs to give notice.

		<u>2. Status Conference re Default Judgment</u> Plaintiffs submitted a default packet on or about 10/31/25 and requested a court judgment against numerous defendants. At the time, defaults had been entered against all named defendants. The court found the evidence submitted with the original default packet to be insufficient for the requested default judgment. (See 11/12/25 Minute Order.) Plaintiffs filed supplemental declarations on 1/12/26, and after taking the matter under submission on 1/21/26, the court issued a ruling, stating the “default packet remains defective.” (3/12/26 Minute Order.) In light of the ruling on the motion to set aside, the court takes the Status Conference re Default Judgment OFF-CALENDAR. As previously mentioned, the Complaint treats all of the defendants together. As such, the court will not proceed with a default judgment against the remaining defaulted defendants until trial or when all of the named defendants have been defaulted or dismissed. Plaintiff to give notice.
11	Doe 7159 vs. Pacifica Christian High School	<u>Motion to Compel Binding Arbitration</u> The court DENIES Defendant PACIFICA CHRISTIAN HIGH SCHOOL’s motion to compel Plaintiff JOHN DOE 7159 to arbitrate his claims. Defendant provides evidence that Plaintiff’s mother, on behalf of Plaintiff, signed a 4/8/24 Enrollment Agreement – a 10 page agreement containing the following arbitration provision: 24. Arbitration: This Arbitration Agreement will be governed by federal law under the Federal Arbitration

Act. With the exception of tuition disputes covered by Section 8(c) of this Agreement, any and all disputes, claims, or controversies arising out of or relating to this Agreement or its breach, termination, enforcement, non-renewal, interpretation or validity, including any dispute relating to Student's enrollment at School, departure from School, educational experience at School, and any disciplinary actions against Student or Responsible Party, and including the determination of the scope or applicability of this Agreement to arbitrate, will be determined by arbitration in Orange County, California, or another location agreed to by the parties.

(Gonzalez Decl., Exh. A, underlining supplied.)

The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but because arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) The arbitration provision in this case expressly states that the FAA shall apply.

The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (*AT & T Mobility LLC v. Concepcion* (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (*Id.*) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.)

The EFAA

Plaintiff first argues that the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”, 9 U.S.C. §§ 401, 402) precludes enforcement of the Agreement in this case.

The EFAA prevents the enforcement of employment arbitration agreements in disputes involving claims of sexual harassment or sexual assault. “The Act consists of two sections. Section 402(a), provides that at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ‘no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.’ Any issue as to whether the Act applies to a dispute is to be determined under federal law. (9 U.S.C. § 402, subd. (b).)” (*Kader v. Southern California Medical Center, Inc.* (2024) 99 Cal.App.5th 214, 221 (Kader).) If the EFAA applies, issues of arbitrability “shall be determined under Federal law . . . [and] shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determination to an arbitrator.” (9 U.S.C., § 402(b).)

“Section 401 of the Act defines several relevant terms: (1) a predispute arbitration agreement is ‘any agreement to arbitrate a dispute that had not yet arisen at the time of the making of the agreement;’ (2) a sexual assault dispute is ‘a dispute involving a nonconsensual sexual act or sexual contact,’ and (3) a sexual harassment dispute is ‘a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.’ (9 U.S.C. § 401(1), (3), & (4).)” (*Kader*, 99 Cal.App.5th at 221-222.) The term “sexual contact” under the EFAA means “the intentional touching, either directly or through the clothing, of the genitalia, anus, groin, breast, inner thigh, or buttocks of any person with an intent to abuse, humiliate, harass, degrade, or arouse or gratify the sexual desire of any person.” (9 U.S.C. § 401; 18 U.S.C. § 2246.)

In response, Defendant appears to argue that “it is unlikely that the EFAA applies to arbitration agreements that are not authorized by the FAA and similarly do not apply outside the scope of employment law”. (Reply Br. at p. 3, lines 21-24.) The EFAA does not appear to state such an exception.

Defendant also appears to argue that the conduct alleged in this action does not amount to “sexual contact” to trigger the EFAA. Plaintiff, on the other hand, argues that this case relates to a dispute over a nonconsensual “sexual contact” under the EFAA. The allegations in the Complaint favor Plaintiff’s argument. The Complaint alleges the following: When he was 15 years old and on the high school golf team at a school-sanctioned team trip to Palm Springs, Plaintiff was naked in a bathroom stall when high school golf teammates broke through the stall door, restrained Plaintiff, and covered his naked body with baby oil as they recorded the assault on video. (Compl., ¶ 1.) Those teammates then posted the video to TikTok. (Ibid.)

The Complaint sufficiently alleges conduct that appears to fall under the EFAA. As such, Plaintiff has shown that the arbitration provision is “invalid” as applied to this case. Pursuant to the EFAA, at Plaintiff’s election, the arbitration agreement shall not be “valid or enforceable with respect to [the] case.” (9 U.S.C. § 402(a).)

Arbitration Agreement Terms

Plaintiff also argues that Plaintiff’s claims are not covered by the arbitration provision.

The court agrees. Even if the EFAA does not apply, the arbitration provision here does not appear to cover the claims at issue in this action. The arbitration provision covers “any and all disputes, claims, or controversies arising out of or relating to this Agreement or its breach, termination, enforcement, non-renewal, interpretation or validity, including any dispute relating to Student’s enrollment at School, departure from School, educational experience at School, and any disciplinary actions against Student or Responsible Party.” (Gonzalez Dec., Ehx. A.)

		This lawsuit and the underlying incident do not appear to relate to the Enrollment Agreement or its breach, termination, enforcement, non-renewal, interpretation or validity. Further, this lawsuit and the underlying incident do not appear to relate to Plaintiff’s enrollment, departure, or educational experience at the school. Rather, the action relates to an assault that occurred by Plaintiff’s high school peers while off campus and during a golf team trip. Defendant relies on <i>Bigler v. Harker School</i> (2013) 213 Cal.App.4th 727, 732, a case in which the appellate court held the arbitration provision covering “any dispute involving the School” included the student plaintiff’s claim of battery against a teacher, whose alleged conduct occurred within the course and scope of his role as a teacher in his classroom on a school day concerning an academic performance the student brought to the teacher’s attention. The arbitration provision here and the conduct at issue sufficiently differentiate this case from <i>Bigler</i>. Accordingly, the court DENIES Defendant’s motion to compel arbitration. Plaintiff to give notice.
12	Nesjan vs. AirBnB, Inc.	<u>Motion to Compel Binding Arbitration</u> The court DENIES Defendant PACIFICA CHRISTIAN HIGH SCHOOL’s motion to compel Plaintiff JOHN DOE 7159 to arbitrate his claims. Defendant provides evidence that Plaintiff’s mother, on behalf of Plaintiff, signed a 4/8/24 Enrollment Agreement – a 10 page agreement containing the following arbitration provision: 24. Arbitration: This Arbitration Agreement will be <u>governed by federal law under the Federal Arbitration Act. With the exception of tuition disputes covered by Section 8(c) of this Agreement, any and all disputes,</u>

claims, or controversies arising out of or relating to this Agreement or its breach, termination, enforcement, non-renewal, interpretation or validity, including any dispute relating to Student's enrollment at School, departure from School, educational experience at School, and any disciplinary actions against Student or Responsible Party, and including the determination of the scope or applicability of this Agreement to arbitrate, will be determined by arbitration in Orange County, California, or another location agreed to by the parties.

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The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (*AT & T Mobility LLC v. Concepcion* (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (*Id.*) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.)

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In response, Defendant appears to argue that “it is unlikely that the EFAA applies to arbitration agreements that are not authorized by the FAA and similarly do not apply outside the scope of employment law”. (Reply Br. at p. 3, lines 21-24.) The EFAA does not appear to state such an exception.

Defendant also appears to argue that the conduct alleged in this action does not amount to “sexual contact” to trigger the EFAA. Plaintiff, on the other hand, argues that this case relates to a dispute over a nonconsensual “sexual contact” under the EFAA. The allegations in the Complaint favor Plaintiff’s argument. The Complaint alleges the following: When he was 15 years old and on the high school golf team at a school-sanctioned team trip to Palm Springs, Plaintiff was naked in a bathroom stall when high school golf teammates broke through the stall door, restrained Plaintiff, and covered his naked body with baby oil as they recorded the assault on video. (Compl., ¶ 1.) Those teammates then posted the video to TikTok. (Ibid.)

The Complaint sufficiently alleges conduct that appears to fall under the EFAA. As such, Plaintiff has shown that the arbitration provision is “invalid” as applied to this case. Pursuant to the EFAA, at Plaintiff’s election, the arbitration agreement shall not be “valid or enforceable with respect to [the] case.” (9 U.S.C. § 402(a).)

Arbitration Agreement Terms

Plaintiff also argues that Plaintiff’s claims are not covered by the arbitration provision.

The court agrees. Even if the EFAA does not apply, the arbitration provision here does not appear to cover the claims at issue in this action. The arbitration provision covers “any and all disputes, claims, or controversies arising out of or relating to this Agreement or its breach, termination, enforcement, non-renewal, interpretation or validity, including any dispute relating to Student’s enrollment at School, departure from School, educational experience at School, and any disciplinary actions against Student or Responsible Party.” (Gonzalez Dec., Ehx. A.)

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13	Hwang vs. Pie Venture, LLC	<u>Demurrer (re Answer)</u> The court SUSTAINS Plaintiffs TONY JIN HWANG and MAL SUK KIM's demurrer to the following affirmative defenses contained in Defendants' Answer: Nos. 2-3, 5-13, 15-19. (Code Civ. Proc., § 430.20(a).) Five days leave to amend is GRANTED, except as to the 9th affirmative defense (re statute of limitations). As to each of the affirmative defenses demurred to, Plaintiffs argue that "no facts are stated in connection with the purported defense." In a very belated response, Defendants state they "do not contest the demurrer" but request leave to file an amended answer. (Opp'n Br., filed 6/24/26.)

		Defendants have attached a proposed amended answer to their late opposing papers. (Opp’n Br., Exh. A.) From a quick review of the proposed amended answer, it appears that Defendants have not added (nor deleted) any affirmative defenses and they have added some factual allegations in connection with <i>most</i> of the asserted defenses. One of the affirmative defenses clearly remains deficient – the 9th affirmative defense for statute of limitations. Indeed, it is arguably more deficient than before. The proposed amended answer merely adds the following underlined language: “Defendants allege that Plaintiffs’ claims are barred by the applicable Statute of Limitations <u>if so applicable after discovery.</u>” No statute of limitations is identified. As such, leave to amend is not granted as to the demurrer to the 9th affirmative defense. Plaintiffs to give notice.
14	Trent vs. General Motors, LLC	<u>Demurrer (re Complaint)</u> <u>Motion to Strike</u> <u>OFF-CALENDAR.</u> (See 6/24/26 Minute Order [hearing vacated after notice of withdrawal filed].)
15	Frahm vs. City of Huntington Beach	<u>Motion to Seal</u> <u>Motion for Summary Judgment and/or Adjudication</u> (x3) <i>1. <u>Motion to Seal</u></i> The court GRANTS in part, and DENIES in part, Plaintiffs ROBERT BOWDEN, MARK VAN METER, and FRANK GALLANT’s unopposed motion to seal. Specifically, the court GRANTS the motion to seal the evidence submitted in support of the opposing papers but DENIES the motion as to the remaining documents apparently sought to be

sealed – i.e., the opposing points and authorities and the separate statements.

According to the Notice of Motion, Plaintiffs seek to seal the following: “portions of Plaintiffs’ Oppositions to Defendant’s (three separate) Motions for Summary Judgment, or Alternatively Summary Adjudication”. (Not. Of Motion, p. 2, lines 2-10.)

The Notice of Motion does not state what are the specific “portions” of the opposing papers or what specific documents are sought to be sealed. It appears from the court file however that Plaintiff seeks to have the 15 documents listed below sealed. The court file indicates that Plaintiffs filed these 15 documents conditionally under seal. Each document was electronically filed on 4/10/26.

Re MSJ/A concerning Plaintiff Mark Van Meter

ROA 210 – P’s Memo. Of Pts. & Auth. in Opposition

ROA 211 – P’s Sep. Statement

ROA 212 – P’s Evidence in Support of Opposition – Volume 1

ROA 213 – P’s Evidence in Support of Opposition – Volume 2

ROA 214 – Supplemental Declaration of Jason L. Oliver in Opposition

Re MSJ/A concerning Plaintiff Robert Bowden

ROA 216 – P’s Memo. Of Pts. & Auth. in Opposition

ROA 217 – P’s Sep. Statement

ROA 218 – P’s Evidence in Support of Opposition – Volume 1 of 2

ROA 219 – P’s Evidence in Support of Opposition – Volume 2 of 2

ROA 220 – Supplemental Declaration of Jason L. Oliver in Opposition

Re MSJ/A concerning Plaintiff Frank Gallant

ROA 222 – P’s Memo. Of Pts. & Auth. in Opposition

ROA 223 – P’s Sep. Statement

ROA 224 – P’s Evidence in Support of Opposition – Volume 1

ROA 225 – P’s Evidence in Support of Opposition – Volume 2

ROA 226 – Supplemental Declaration of Jason L. Oliver in Opposition

Here, in addition to filing the 15 documents listed above *conditionally under seal*, Plaintiff filed 15 *redacted* documents also on 4/10/26. For the most part, the redacted documents appear to correspond to the unredacted documents filed conditionally under seal. The exception appears to be with the Supplemental Declarations of Jason L. Oliver. It appears that Plaintiffs intended to file a copy of the supplemental declaration as to each plaintiff but neglected to change the captions before filing to reflect such. In any case, this apparent clerical error appears to be of no moment. The supplemental declarations appear to be duplicative. Each of the Supplemental Declarations of Jason L Oliver attach Exhibit 157. The redacted version of the supplemental declaration redacts specific portions of Exhibit 157. (See ROA 188 [redacted], ROA 208 [redacted]. ROA 214 [unredacted], ROA 220 [unredacted], ROA 226 [unredacted].)

A record cannot be filed under seal without a court order. (Cal. Rules Ct., rule 2.551(a).) To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules Ct., rule 2.551(b)(1).) The party must also lodge a copy of the record unless good cause exists for not lodging it or the record has previously been lodged by a party not intending to file the motion. (Cal. Rules Ct., Rule 2.551(b)(4).)

California Rules of Court, rule 2.550(d) provides: “The court may order that a record be filed under seal only if it expressly finds facts that establish the following:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules Ct., Rule 2.550(d); *McGuan v. Endovascular Technologies, Inc.* (2010) 182 Cal.App.4th 974, 988.) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (See *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1217-1218; *Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97, 104; *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026–27 [finding that in determining whether to seal records, courts must weigh constitutional requirements for disclosure against such factors as privacy rights].)

A sealing order must (a) specifically state facts supporting the above findings and (b) be narrowly tailored (i.e. it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file. (Cal. Rules Ct., rule 2.550(e)(1); Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group) ¶ 9:418.1.)

Here, in conclusory form, Plaintiffs simply argue that certain information and materials referenced in support of Plaintiffs’ Oppositions constitute Confidential Materials or information derived from such. Plaintiffs make no affirmative showing that there is an overriding interest overcoming the right of public access to the record. Plaintiffs instead state in conclusory terms that these documents were produced by Defendant City pursuant to a *Pitchess* motion and have been designated as “Confidential” pursuant to the stipulated protective order. (ROA 199, ¶ 4.) While personnel records are within the zone of privacy (see, e.g., *El Dorado Sav. & Loan Ass’n v. Superior Court* (1987) 190 Cal.App.3d 342; *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, disapproved of on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531), Plaintiffs apparently seek to seal more than the personnel records.

Specifically, Plaintiffs appear to seek an order redacting references to certain alleged supervisors and retaliatory practices set forth in the Plaintiffs’ declarations, separate statements, and briefs. The names of these supervisors as

identified in Plaintiffs' declarations and the briefs and do not appear to be confidential.

Plaintiffs' own papers appear to belie their conclusion that the redactions are narrowly tailored and necessary to protect confidential information. For example, Plaintiffs' publicly filed documents redact some references to a certain Sergeant's name and practices (see, e.g., ROA 186 [unredacted opp'n brief re Gallant] at 8:26, 10:26, 17:13, 7:16-17) but also, in the unredacted portions, identifies the Sergeant by name and describes the Sergeant's alleged retaliatory practices (ROA 186 [unredacted opp'n brief] at 1:19-28, 4:13-5:3, 5:25-6:5, 6:25-28, 7:8-8:24, 8:26-9:1).

In sum, Plaintiff fails to show that the court should seal any portion of the opposing briefs (i.e., the Memorandum of Points and Authorities) and the separate statements.

And while Defendants filed a "Notice of Non-Opposition to Plaintiff's Motion to Seal" (ROA 241), "[t]he court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties" (Cal. Rules of Ct., rule 2.551(a)).

Accordingly, the court **GRANTS** the motion to seal the following documents only: ROA 212, ROA 213, ROA 214, ROA 218, ROA 219, ROA 220, ROA 224, ROA 225, and ROA 226. As to these 9 documents only, the court finds the following: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest.

The court **DENIES** the motion to seal as to the remaining 6 documents: ROA 210, ROA 211, ROA 216, ROA 217, ROA 222, and ROA 223. These documents will be immediately unsealed.

Plaintiff to give notice.

2. MSJ/As

The motions for summary judgment/adjudication were continued from 5/1/26, to be heard with the motion to seal.

No tentative rulings will be posted for the motions for summary judgment/adjudication before a final ruling on the motion to seal.

If the parties submit on the tentative ruling for the motion to seal before the hearing, the court may issue tentative rulings on the motions for summary judgment/adjudication.

*****Update after both sides submitted on tentative ruling for motion to seal:**

1. MSJ/MSA – re Robert Bowden

The court **DENIES** Defendant CITY OF HUNTINGTON BEACH's (the "City") Motion for Summary Judgment on the Complaint filed by Plaintiff ROBERT BOWDEN.

The court **DENIES in part and GRANTS in part** the City's alternative motion for summary adjudication of issues. Specifically, the court DENIES summary adjudication on the first cause of action and GRANTS summary adjudication in favor of the City on the second cause of action (injunctive relief).

The Complaint asserts two causes of action on behalf of all three Plaintiffs against the City, the only named defendant:

1. Retaliation in violation of Labor Code § 1102.5
2. Injunctive relief under Labor Code §§ 1102.61-1102.62

1st C/A (retaliation)

The first cause of action alleges the City retaliated against the Plaintiffs for disclosing information to the City or Huntington Beach Police Department (“HBPD”) and/or refusing to engage in an unlawful quota. (Compl. ¶ 33.)

The City argues Plaintiff cannot establish by a preponderance of evidence that his protected whistleblowing was a contributing factor to any adverse employment action, given his complaints were stale and the two alleged adverse employment actions identified by Bowden were not retaliatory.

Plaintiff argues triable issues remain as to whether his protected activities were a contributing factor in the adverse employment actions, including among others the denial of his application to become a field training officer (“FTO”).

Labor Code section 1102.5 prohibits retaliation against an employee who discloses or is believed to disclose information to any person with authority to investigate the matter, any public body conducting an invitations, hearing, or inquiry. (See Lab. Code, § 1102.5(b)-(c).) Specifically, subdivision (b) prohibits retaliation “against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee’s job duties.” Subdivision (c) continues, prohibiting retaliation “against an employee for refusing to participate in an activity that would result in a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.”

Section 1102.6 provides in relevant part,

“In a civil action . . . brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5.”

“[Labor Code] section 1102.6, and not *McDonnell Douglas*, supplies the applicable framework for litigating and adjudicating section 1102.5 whistleblower claims.” (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.) “First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action. The plaintiff need not satisfy *McDonnell Douglas* in order to discharge this burden. Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.” (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 718.) The plaintiff “does not need to show that the employer’s nonretaliatory reason was pretextual” and satisfies his burden even where legitimate factors also contributed, unless the employer carries its affirmative burden of clear and convincing proof. (*Id.* at 715-716.)

“An ‘adverse employment action’ is one that ‘materially affects the terms, conditions, or privileges of employment.’” (*Doe v. Dept. of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 734 [citing *Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1051].) “An adverse employment action refers to ‘actions that are reasonably likely to adversely and materially affect an employee’s job performance or opportunity for advancement.’” (*Id.* [citing *Yanowitz*, 36 Cal.4th at 1054].)

The court may consider a plaintiff's allegations collectively. (*Yanowitz v. L'Oreal USA*, 36 Cal.4th at 1055-1056.)

"[T]here is no requirement that an employer's retaliatory acts constitute one swift blow, rather than a series of subtle, yet damaging, injuries. [Citation.] Enforcing a requirement that each act separately constitute an adverse employment action would subvert the purpose and intent of the statute." (*Id.* at 1055.)

Here, it is undisputed that Plaintiff Bowden engaged in protected activity, including reporting an illegal quota to his supervisors. (See Def.'s Sep. St. Nos. 2-3; Pltf.'s Sep. St. Nos. 2-3.) It is also undisputed that Plaintiff Bowden was not promoted to the FTO position. (Def.'s Sep. St. Nos. 13-14; Pltf.'s Sep. St. Nos. 13-14.)

However, there are disputed material facts as to whether Plaintiff Bowden's formal complaints regarding the "Warzen" quota were a contributing factor in the City's decisions to deny the FTO position. (See Pltf.'s Add. Sep. St. Nos. 2, 22, 55, 62, 65, 81 [citing among others Bowden Decl. ¶¶ 3, 14, 15, 20; Liberman Depo, at 147:17-148:1].)

As such, the motion for summary judgment is DENIED and the motion for summary adjudication of the first cause of action is likewise DENIED.

2nd C/A (injunctive relief under Lab. Code §§ 1102.61 and 1102.62)

The second cause of action seeks an injunction restraining the City from continuing the unlawful quotas, restraining the City from retaliating against employees who oppose or fail to comply with those quotas, and requiring the City to implement policies and procedures to prevent further retaliation or use of quotas.

The City argues Plaintiff has no standing to seek injunctive relief, as the undisputed facts show Plaintiff Bowden is no longer an employee of the City.

Plaintiff argues that because sections 1102.61 and 1102.62 authorize injunctive relief in "any civil action . . . brought pursuant to Section 1102.5," and Section 1102.5 prohibits

retaliation “in any former employment,” injunctive relief is necessarily available to former employees.

Labor Code sections 1102.61 and 1102.62 provide for preliminary injunctive relief in proceedings alleging retaliation under section 1102.5. Specifically, Labor Code section 1102.61 provides:

“In any civil action or administrative proceeding brought pursuant to Section 1102.5, an employee may petition the superior court in any county wherein the violation in question is alleged to have occurred, or wherein the person resides or transacts business, for appropriate temporary or preliminary injunctive relief as set forth in Section 1102.62.”

(Lab. Code, § 1102.61.) Section 1102.62, in turn, provides the conditions and considerations for issuing such temporary or preliminary injunctive relief. (Lab. Code, § 1102.62.)

Plaintiff’s argument that injunctive relief is available in all 1102.5 proceedings ignores the plain terms of 1102.61, which provides that “an employee may petition . . . for . . . preliminary injunctive relief.” (Lab. Code, § 1102.61 [emphasis added].) Plaintiff cites no case authority interpreting these statutes to provide a right to preliminary injunctive relief to former employees, and this court is aware of none.

Here, the undisputed facts show Plaintiff Bowden is no longer an employee of Defendant City, as he retired in March 2023. (See Pltf.’s Sep. St. No. 22.) Plaintiff does not require and would not benefit from any provisional or interim remedy.

In sum, the undisputed facts show Plaintiff cannot establish his second cause of action for injunctive relief.

As such, the motion for summary adjudication of the second cause of action is GRANTED.

Evidentiary Objections

The court **SUSTAINS** the City's objection **No. 8** to Bowden Declaration, as to only the sentences beginning with "Despite being the most qualified candidate . . ." and "I believe I was singled out...."

The court **SUSTAINS** the City's objection **No. 9** to Bowden Declaration, only as to all but the following: "I met individually with each supervisor involved in the FTO decision," and "Sgt. Warken, who had final say, refused to answer my questions and could not articulate any suggestions for how I could improve."

The court **SUSTAINS** the City's objection **No. 10** to Bowden Declaration as to all but the following: "I was present at most if not all of the meetings involving complaints/discussions about unlawful citation/arrest quotas, and Villegas did not complain."

The City's objection nos. 8-10 are otherwise overruled.

The remainder of the objections asserted by the parties are not material to the disposition of this motion. (See Code Civ. Proc., § 437c(q).)

2. MSJ/MSA – Mark Van Meter

The court **GRANTS** Defendant City's Motion for Summary Judgment on the claims of Plaintiff Mark Van Meter. The City's alternative Motion for Summary Adjudication as to Plaintiff Mark Van Meter's claims are therefore **MOOT**.

1st C/A (retaliation)

Statute of Limitations

Defendant City argues Plaintiff Van Meter's claim is barred by the three-year statute of limitations (Code Civ. Proc., § 438(d)), as he did not complain about the quota after being reassigned to patrol in March of 2018 (Def.'s Sep. St. No.

8), which is around the time Plaintiff was subjected to the alleged retaliation (see Def.'s Sep. St. No. 7).

The City meets its initial burden to show Plaintiff cannot establish a valid retaliation claim because any claim based on alleged retaliation in 2017-2018 is time-barred. (See Def.'s Sep. St. Nos. 7-8.)

Delayed Accrual

Plaintiff argues the continuing nature of the retaliation between 2018 and 2023 allows Plaintiff to recover for claims outside the limitations period.

Two branches of accrual rules apply to “continuing wrongs”: the continuing violation doctrine and the theory of continuous accrual. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197.)

The continuing violation doctrine allows a plaintiff to recover for actions that took place during the statute of limitations and misconduct that occurred outside that period provided it is “sufficiently linked” to the conduct within the limitations period. (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 812.) For example, in a retaliation case, the continuing violation doctrine applies to claims of retaliation reaching beyond the limitations period if the employer’s actions (i) are “sufficiently similar in kind,” (ii) occur with “reasonable frequency,” and (iii) they “have not acquired a degree of permanence.” (See *Richards v. CH2M Hill, Inc.*, 2 Cal.4th at 802, 823.)

The continuing violation doctrine does not apply to a series of denied promotions. (See, e.g., *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104.) In *Willis v. City of Carlsbad*, the police officer alleged he reported fraud in 2012 and the City retaliated against him by forcing him in January of 2013 to transfer from investigations to patrol. (*Id.* at 1125-1126.) In 2013, 2014, and 2015, the plaintiff attempted to transfer back to his role as an investigator; each time, the request for transfer was denied in favor of a less-qualified officer. (*Id.* at 1126.) The court found each denial became permanent when a different applicant was put in the position. (*Id.* at 1126; see also, e.g., *Cucuzza v. City of Santa*

Clara (2002) 104 Cal.App.4th 1031,1043 [the plaintiff's loss of job duties became permanent when her job title changed]; *Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1402-1404 [finding harassment and retaliation became permanent once plaintiff was served a 10-day suspension ordered by his chief after having endured reprimands, disciplines, transfers, and denials of grievances in response to his discrimination complaints]; cf. *Brome v. California Highway Patrol* (2020) 44 Cal.App.5th 786, 799 [concluding a jury could find absence of permanence where the supervisors never indicated they had reached an impasse on his claims of harassment, were rejecting his concerns, or that he should leave or give up].)

On the other hand, where the alleged wrong is continual or recurring, the cause of action is subject to continuous accrual for statute of limitations purposes. In other words, a cause of action accrues each time a wrongful act occurs, triggering a new limitations period. (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 395-396 [alleging a series of negligent acts including the handling and use of hazardous substances to their disposal, release, and remediation]; *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1199 [technician wrongfully included charges for "test" copies in monthly bills].)

Plaintiff filed this action on 4/13/23. Plaintiff Van Meter shows no triable issues of material fact regarding the timeliness of his claim.

Events Occurring Before April 2020

Plaintiff submits evidence that in early 2018, Plaintiff Van Meter was coerced into transferring from his position as a traffic investigator to patrol, under threat of an Internal Affairs investigation, and simultaneously removed from the Major Accident Investigation Team ("MAIT"). (Van Meter Decl. ¶¶ 6, 15, 22; Baker Decl. ¶¶ 17-18; see also Pltf.'s Sep. St. No. 2.) These events cannot be part of a continuing violation because the loss of Plaintiff's positions became permanent in 2018, when Plaintiff transferred to patrol and was formally removed from MAIT. (See *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1043 [the

plaintiff's loss of job duties became permanent when her job title changed].)

Plaintiff argues the threat of an Internal Affairs investigation lacked a degree of permanence because the threat never resolved. Plaintiff's evidence demonstrates the threat was made in early 2018 to coerce a certain action by Plaintiff (i.e., transfer), that coercion succeeded in securing a transfer by Plaintiff, and Defendant never mentioned the issue again. (See generally Van Meter Decl.). It appears from the evidence that a factfinder cannot find the potential Internal Affairs investigation materially affected Plaintiff's employment over two years later, within the limitations (post-April 2020).

Plaintiff also submits evidence the Department denied overtime in 2017-2018 because overtime was reserved for "high ticket writers." Plaintiff Van Meter admits he stopped asking for those specific shifts because of the predictable result (see, e.g., Pltf.'s Sep. St. No. 2), which shows that adverse employment action gained a degree of permanence shortly thereafter. Any claim for retaliation based on the Department's refusal to give Plaintiff overtime opportunities accrued at that time.

Lastly, Plaintiff submits evidence that at unspecified dates occurring sometime after 2018, Plaintiff was twice denied a promotion to Field Training Officer ("FTO"). (Van Meter Decl. ¶¶ 57-58). Any claim for retaliation based on these denials accrued when Plaintiff's application was denied. (See *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1126.)

Because Plaintiff does not show the above-mentioned employment actions took place within the limitations period, Plaintiff does not raise a triable issue of fact as to the timeliness of his retaliation claim.

Events Occurring After April 2023

Plaintiff submits evidence of events occurring during the limitations period (on or after April 2020) but does not show these events to constitute adverse employment actions or within any pattern retaliation.

2020 – 2021 Performance Evaluations. Plaintiff Van Meter’s 2020 annual performance review includes 16 categories for evaluation. He received the highest mark (“meets standard”) on 15 categories, and a single “below standard” mark for one item, Proactive Enforcement. (See Def.’s Ev. [ROA 54], Exh. 4.) Plaintiff’s 2021 annual performance review includes only the highest “meets standard” marks. (See Def.’s Ev. [ROA 54], Exh. 5.) The court finds that a single markdown on the performance evaluation, made over two years after the protected activity, is insufficient to raise triable issues of material fact regarding retaliation or a pattern of retaliation.

To the extent Plaintiff argues that forcing officers to work under those quotas itself constitutes retaliation, Plaintiff conflates the activity resulting in a violation of the law (i.e., working under the quota) with retaliation for failing to do so. Section 1102.5(c) provides an employer must not “retaliate against an employee for refusing to participate in [the] activity.” In other words, using the quota as an evaluation tool in the performance review does not in and of itself constitute retaliation, absent adverse employment actions materially affecting the conditions or terms of employment or opportunity for advancement.

2023 Locker Seizure. Plaintiff does not show or explain how the search of his locker, which admittedly took place four days before his retirement and while he was on disability leave (Opp. at 8:21), materially affected his employment. (See Def.’s Sep. St. No. 14; Pltf.’s Sep. St. No. 14 [not disputing these facts].)

The undisputed facts show the alleged pattern of retaliation ended before the limitations began in April 2020.

2nd C/A (injunctive relief under Lab. Code §§ 1102.61 and 1102.62)

Here, the undisputed facts show Plaintiff Van Meter is no longer employed by Defendant City, as Plaintiff retired on 5/31/23. (See Pltf. Van Meter’s Sep. St. No. 22.) Plaintiff

does not require and would not benefit from any provisional or interim remedy.

In sum, the undisputed facts show Plaintiff Van Meter cannot establish his claim for injunctive relief.

The evidentiary objections asserted by the parties are not material to the disposition of this motion. (See Code Civ. Proc., § 437c(q).)

3. MSJ/MSA – Frank Gallant

The court **DENIES** the City's Motion for Summary Judgment on the claims of Plaintiff Frank Gallant. The court **DENIES in part and GRANTS in part** the City's alternative motion for summary adjudication of issues. Specifically, the court DENIES summary adjudication on the first cause of action and GRANTS summary adjudication in favor of the City on the second cause of action (injunctive relief).

1st C/A (retaliation)

Here, there are disputed material facts as to whether the Department's systematic interference with Gallant's professional training duties and/or threatening increased scrutiny in calculating Motor Training Officer pay constitutes adverse employment actions. (See Gallant Depo. at 148:18-153:17, 150:5-155:16, 163: 13-18.) Given Plaintiff's evidence that the first of these actions came after Plaintiff complained about the quota (Gallant Decl. ¶ 30, Garrett Depo. at 162:16-163:9, 166:5-167:16), triable issues of material fact also remain regarding whether Gallant's complaints about the unlawful quotas were a contributing factor in those employment actions.

2nd C/A (injunctive relief under Lab. Code §§ 1102.61 and 1102.62)

Here, the undisputed facts show Plaintiff Frank Gallant is no longer employed by Defendant City, as Plaintiff retired in June of 2023. (See Pltf. Gallant's Sep. St. No. 5.) Plaintiff

		does not require and would not benefit from any provisional or interim remedy. In sum, the undisputed facts show Plaintiff Gallant cannot establish his claim for injunctive relief. The evidentiary objections asserted by the parties are not material to the disposition of this motion. (See Code Civ. Proc., § 437c(q).) Defendant to give notice.